

Court No. - 21

Case :- WRIT - C No. - 18103 of 2015

Petitioner :- Swati Kakkar

Respondent :- Paschimanchal Vidyut Vitran Nigam Limited And Another

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- Chandra Agarwal

Hon'ble Vikram Nath,J.

Hon'ble Dinesh Gupta,J.

Heard learned counsel for the petitioner and Sri Chandra Agarwal, learned advocate representing for respondent nos. 1 and 2.

Sri Chandra Agarwal, learned counsel for respondent nos. 1 and 2 states that the matter may be taken up on Tuesday i.e. on 7.4.2015 to enable him to obtain instructions.

put up this case on Tuesday i.e. on 7.4.2015. It is, however, directed that the electricity connection of the petitioner shall be restored within twenty four hours.

Order Date :- 2.4.2015

AU

Court No. - 39

Case :- WRIT - C No. - 18103 of 2015

Petitioner :- Swati Kakkar

Respondent :- Paschimanchal Vidyut Vitran Nigam Limited And Another

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- Chandra Agarwal

Hon'ble Dinesh Maheshwari,J.

Hon'ble Vinod Kumar Misra,J.

Learned counsel for the respondents no. 1 and 2 submits on instructions that electricity connection of the petitioner has been restored in compliance of the order passed by this Court on 02.04.2015.

Having regard to the submissions made in this writ petition, the respondents may file a short counter affidavit on or before the next date.

List this matter on 20.04.2015 as prayed.

Order Date :- 10.4.2015

Om.

(Vinod Kumar Misra, J.)(Dinesh Maheshwari, J.)

Court No. - 34

Case :- WRIT - C No. - 18103 of 2015

Petitioner :- Swati Kakkar

Respondent :- Paschimanchal Vidyut Vitran Nigam Limited And Another

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- Chandra Agarwal

Hon'ble Sudhir Agarwal,J.

Hon'ble Vivek Kumar Singh,J.

1. It is contended that impugned assessment bill has been raised without any show cause notice which is in violation of principles of natural justice. He relied on a Division Bench decision of this Court in **Ashok Kumar and others Vs. State of U.P. and others 2008 (6) ADJ 660 DB.**
2. Notice on behalf of respondents 1 and 2 has been accepted by Shri Chandra Agarwal but he is not present before this Court.
3. Issue a fresh notice to respondent no. 2.
4. Steps to be taken within one week.
5. The respondent may file counter affidavit within two weeks.
6. List thereafter.

Order Date :- 27.10.2017

AK Pandey

Court No. - 34

Case :- WRIT - C No. - 18103 of 2015

Petitioner :- Swati Kakkar

Respondent :- Paschimanchal Vidyut Vitran Nigam Limited And
Another

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- Chandra Agarwal

Hon'ble Sudhir Agarwal,J.

Hon'ble Ajit Kumar,J.

1. Steps taken.
2. Office shall verify and proceed accordingly.

Order Date :- 21.12.2017

PS

Court No. - 34

Case :- WRIT - C No. - 18103 of 2015

Petitioner :- Swati Kakkar

Respondent :- Paschimanchal Vidyut Vitran Nigam Limited And Another

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- Chandan Agarwal

Hon'ble Sudhir Agarwal,J.

Hon'ble Shashi Kant,J.

1. Heard Sri Dinesh Rai, Advocate, holding brief of Sri B.C.Rai, learned counsel for the petitioner and perused the record.

2. This is thoroughly misconceived and ill advised petition and ought not to have been filed. It appears that an assessment bill was issued to the petitioner but he did not avail remedy of disputing the bill before authority concerned under Clause 6.5 of U.P. Electricity Supply Code, 2005 (hereinafter referred to as "Code") or if it was a case of wrong assessment, under Clause 6.8 of Code.

3. In the matter of assessment, there is also provision of appeal. In the matter of dispute of any bill, decision, if any, taken by competent authority, thereagainst further remedy is provided before District Redressal Forum and then before Ombudsman. None of these remedy have been availed by petitioner.

4. The writ petition, therefore, is dismissed on the ground of alternative remedy.

Order Date :- 26.2.2018

KA